

Warsaw, April 18, 2023

Decision

DKE.561.3.2023

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text: Journal of Laws of 2022, item 2000) in connection with Articles 7 and 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) and based on Article 58(2)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, as amended), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on P. sp. z o.o. based in W., the President of the Personal Data Protection Office issues a reprimand to P. sp. z o.o. based in W. at ul. (...), for violating the provisions of Articles 31 and 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, as amended), consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide access to information necessary for the President of the Personal Data Protection Office to carry out his tasks in the proceedings under case number DS.523.5051.2022.

Justification

Factual Background

In the proceedings conducted by the President of the Personal Data Protection Office (hereinafter: "the President of UODO") under case number DS.523.5051.2022, initiated based on the complaint of Mr. M. K., residing in M. at ul. (...), regarding irregularities in the processing of his personal data by P. sp. z o.o. based in W. at ul. (...) (hereinafter: "the Company"), by letter dated October 18, 2022, delivered on October 24, 2022, the President of UODO summoned the Company to provide explanations regarding the matter within 7 days from the date of delivery of the summons. The Company did not respond to this summons.

By letter dated December 2, 2022, delivered on December 7, 2022, the President of UODO again summoned the Company to provide explanations regarding case DS.523.5051.2022. The letter contained a warning that failure to provide a comprehensive response to the summons could result in the imposition of an administrative monetary penalty on the Company based on Article 83(5)(e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: "GDPR"). The Company also did not respond to this summons.

In light of the above, by letter dated February 3, 2023, delivered on February 9, 2023, the President of UODO initiated the present administrative proceedings regarding the imposition of an administrative monetary penalty on the Company for violating Articles 31 and 58(1)(a) and (e) of the GDPR, consisting of a lack of cooperation with the President of UODO and the Company's failure to fulfill its obligation to provide the President of UODO with the information necessary to carry out his tasks. In this letter, the authority also summoned the Company to present the Company's financial data for 2022. Additionally, the letter contained a warning that if the Company provides written comprehensive explanations in the proceedings under case number DS.523.5051.2022 within 7 days from the date of delivery of the information about the initiation of the proceedings and justifies the earlier lack of response to the summons, this circumstance may mitigate the administrative monetary penalty imposed in these proceedings or may lead to the decision to refrain from imposing it.

On February 17, 2023, a letter from the Company's attorney was received by the President of UODO, in which comprehensive responses were provided to the earlier summonses of the President of UODO in the proceedings under case number DS.523.5051.2022. Furthermore, in response to the

information about the initiation of the present proceedings regarding the imposition of an administrative monetary penalty on the Company, the Company's attorney explained that the Company, since receiving the letter dated October 18, 2022, expressed a willingness to cooperate with the President of the Personal Data Protection Office and demonstrated full commitment by providing the attorney (law firm) with the summons from the President of UODO and the necessary information to prepare a response to that summons. The attorney indicated that the response to the summons from the President of UODO dated October 18, 2022, was prepared by the law firm on time, of which the Company was aware. The Company was convinced that the response had been sent to the President of UODO by the law firm and did not inform the law firm about the subsequent summons to provide explanations dated December 2, 2022. The failure to send a response to the President of UODO was due to an oversight by an employee of the law firm.

Legal Justification

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following. According to Article 57(1)(a) of the GDPR, the President of UODO – as a supervisory authority within the meaning of Article 51 of the GDPR – monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of the UODO considers, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f)). To enable the realization of these defined tasks, the President of the UODO has a number of powers specified in Article 58(1) of the GDPR concerning the proceedings conducted, including the power to order the controller and the processor to provide all information necessary to fulfill its tasks (Article 58(1)(a)) and the power to obtain access from the controller and the processor to all personal data and all information necessary to fulfill its tasks (Article 58(1)(e)). It should also be noted that the controller and the processor are obliged to cooperate with the supervisory authority in the performance of its tasks, as stated in Article 31 of the GDPR.

A violation of the provisions of Article 31 and Article 58(1)(a) and (e) of the GDPR, as mentioned above, consisting of the failure of the controller or the processor to provide access to data and information, is subject to – in accordance with Article 83(5)(e) in fine of the GDPR – an administrative fine of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

The President of the UODO has a number of corrective powers specified in Article 58(2), including the issuance of warnings to the controller or the processor in the event of violations of the GDPR by processing operations. The President of the UODO, acting under Article 58(2)(b) of the GDPR, may deem it justified to issue a warning regarding the identified violation of the provisions of Article 31 and Article 58(1)(a) and (e) of the GDPR. According to Recital 148 of the GDPR, to make the enforcement of the provisions of the regulation more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a warning. However, due attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken to minimize the damage, the degree of responsibility or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or the processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Relating the aforementioned provisions of the GDPR to the established facts in this case, it should be stated that the Company, as the personal data controller, being a party to the proceedings under reference DS.523.5051.2022, violated Article 31 of the GDPR by failing to respond to requests for clarification, thereby failing to cooperate with the President of the UODO in the performance of his tasks, as well as Article 58(1)(a) and (e) of the GDPR by failing to ensure the President of the UODO access to information necessary for the fulfillment of his tasks.

During the proceedings concerning the imposition of an administrative fine on the Company, it

responded to earlier requests from the President of the UODO and provided explanations regarding case DS.523.5051.2022, which allowed the President of the UODO to continue the proceedings. From the explanations provided by the Company's representative, which the President of the UODO found credible, it follows that the Company's earlier failure to respond to the President of the UODO's requests was the result of an error by an employee of the law firm, which the Company had commissioned in October 2022 to prepare a comprehensive response to the President of the UODO – which response ultimately reached the authority in February 2023. In the opinion of the President of the UODO, this does not absolve the Company of responsibility for the violations identified in these proceedings, as the actions or omissions of the Company's legal representative have legal effects directly in the legal sphere of the Company.

However, in this case, no other circumstances indicating a lack of willingness to cooperate by the Company with the President of the UODO were found. The evidence collected in the case also does not indicate that delaying cooperation with the President of the UODO could have been beneficial for the Company. These circumstances lead to the conclusion that the Company's earlier failure to respond to the President of the UODO's requests was not intentional.

In light of the above, acting under Article 58(2)(b) of the GDPR, according to which each supervisory authority has the right to issue a warning to the controller or the processor in the event of violations of the provisions of this regulation by processing operations, the President of the UODO deems it justified to issue a warning to the Company regarding the identified violation of the provisions of Article 31 and Article 58(1)(a) and (e) of the GDPR.

The admissibility of replacing a monetary penalty with a warning is also justified by Recital 148 of the GDPR, which states that sanctions, including administrative fines, should be imposed "to make the enforcement of the provisions of this regulation more effective." The President of the UODO concluded that in this case, in light of the criteria specified in Article 83(2) of the GDPR, it would be sufficient to issue a warning.

However, it should be noted that in the event of a similar occurrence in the future, each warning... issued by the President of the Personal Data Protection Office regarding the Company will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles set out in Article 83(2) of the GDPR. In this factual and legal state, the President of the Personal Data Protection Office has decided as stated in the operative part of this decision.

The decision is final. The party has the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw, within 30 days from the date of its delivery, through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00 - 193 Warsaw). A court fee of 100 PLN must be paid for the complaint, in accordance with Article 231 in connection with Article 233 of the Act of August 30, 2002 on Proceedings Before Administrative Courts (Journal of Laws of 2022, item 329, as amended). The party (natural person, legal person, or other organizational unit without legal personality) has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's request submitted before the initiation of proceedings or during the course of the proceedings. The application is exempt from court fees.

Print article

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